

necessary and reasonable given the nature and scope of the issues in the case. The difference (\$480) as compared to the amount requested (\$2,880) is one additional hour of estimated time to attend the hearing. See at ¶4. Given this tentative ruling and that it is unlikely that Petitioner's attorney need appear for a contested hearing, the Court will fix the attorneys' fees at \$2,400.00.

Disposition

The Court finds and orders as follows:

1. Petition is GRANTED.
2. The Subject Property, commonly known as 5444 Clayton Road, Concord, California (120-133-002) is released from the subject Mechanic's Lien of respondent AirCom Mechanical, Inc., upon the recordation of a certified copy of this decree.
3. The Mechanics Lien was recorded on **February 28, 2025** in the Contra Costa County Clerk-Recorder's Office as Instrument No. **DOC-2025-0018900**.
4. Pursuant to Civil Code section 8490, subsections (b) and (c), this order and any judgment thereon is equivalent to cancellation of the claim of lien and its removal from the record and constitutes a recordable instrument.
5. Petitioner shall recover from Respondent reasonable attorneys' fees in the amount of \$2,400.00.
6. Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law.
7. The Court shall issue the order after hearing.
8. Petitioner to prepare a final Judgment on the Petition. Such judgment shall include the legal description of the Subject Property pursuant to Civil Code section 8490, subsection (a)(4).

11. 9:00 AM CASE NUMBER: MSL19-00693

CASE NAME: MIDLAND FUNDING VS MASON

*HEARING ON MOTION IN RE: SPECIALLY APPEARING DEFENDANT DEMETRIA MASON'S NOTICE OF MOTION AND MOTION TO QUASH SUMMONS AND DISMISS ACTION WITH PREJUDICE

FILED BY: MASON, DEMETRIA

TENTATIVE RULING:

Defendant Demetria Mason ("Defendant") filed a Motion to Dismiss and Motion to Quash Summons and Dismiss Action with Prejudice on October 16, 2025 (the "Motion to Dismiss"). The Motion to Dismiss was set for hearing on January 6, 2026. No opposition has been filed to date.

Background

Plaintiff Midland Funding LLC (“Plaintiff”) filed its Complaint against Defendant on January 28, 2019. Defendant filed an Answer on April 14, 2025 (the “Answer”). A default was entered against Defendant on July 6, 2020 (the "Default").

Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on September 4, 2020 (the "Default Judgment").

The Court recently issued an order setting aside the Default and Default Judgment following a motion brought by the Defendant.

Defendant has now filed the present motion.

Analysis

Defendant appears to be seeking to quash the prior attempted service purported done in February 2019. It is not clear to the Court why a motion to quash is necessary at this stage, as the Court’s prior order already determined that such service was invalid. See Order dated September 16, 2025. The Court’s made clear that the next step would be for Plaintiff to complete new service of process. *Id.* at p. 4., ¶16.

Defendant also seeks an order dismissing the case pursuant to Code of Civil Procedure section 583.210. Section 583.210 provides:

The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed.

Code Civ. Proc. § 583.210(a).

Code of Civil Procedure section 583.250 provides that “[i]f service is not made in an action within the time prescribed in this article: [¶] (2) [t]he action shall be dismissed by the court on its own motion or on motion of any person interested in the action,…” See *id.* at § 583.250(a). This provision is mandatory, except as provided by statute. *Id.* at § 583.250(b).

Code of Civil Procedure section 583.240 sets forth various circumstances that may toll or extend the running of the statutory time period. *Id.* at § 583.240.

Whether any of the circumstances apply here has not been briefed by Plaintiff, as no Opposition has been filed.

It is not clear to the Court that the moving papers have been served, as there is no Proof of Service on file.

Disposition

The Court finds and orders as follows:

1. **PARTIES TO APPEAR** to address service of the pending motion and a continued hearing date.